
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE:
Mental Health Counselor License of

ANGELA ANDEWAY
License No. 072076
Respondent

CASE NO. 19-0162

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Behavioral Science (“Board”) and Angela Andeway (“Respondent”), 500 N. 3rd Street, Fairfield, Iowa, 52556, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order (“Order”) pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154D, and 272C, and 645 IAC 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with violating section A.6.b. entitled “Extending Counseling Boundaries” of the ACA Code of Ethics (2014), and may be disciplined pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(1)"b".

B. FACTUAL CIRCUMSTANCES

2. Respondent holds mental health counselor license number 072076, which is currently active through September 30, 2022.

3. Respondent provided therapy to a client for approximately 2 years.

4. Respondent failed to establish and maintain appropriate boundaries with the client.

5. Respondent continued to provide therapy to the client when the client should have been referred to another provider.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

6. The Board has jurisdiction over the parties and the subject matter of this proceeding.

7. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

8. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board’s action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

9. Respondent acknowledges that she has the right to be represented by counsel on this matter.

10. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

11. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

12. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

13. This Order shall not be binding as to any new complaints received by the Board.

14. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

15. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

16. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

17. Respondent's license is hereby placed on **PROBATION** for a period of two (2) years, subject to the following conditions:

- a. Within thirty (30) days, Respondent shall submit the name and credentials of a proposed practice monitor and a proposed practice monitoring plan to the Board for approval. The practice monitor must be an Iowa licensed mental health counselor with no disciplinary history and training in supervision who can objectively monitor Respondent's practice. Practice monitoring shall commence upon Board approval of the practice monitor and the practice monitoring plan. Respondent shall provide the practice monitor with a copy of this Order. Respondent shall meet with the practice monitor at least once per month during the probationary period to review Respondent's compliance with this Order and Respondent's clinical practice, with particular emphasis on boundaries and Respondent's most serious cases. As part of the review of Respondent's clinical practice, Respondent's practice monitor shall review records from a minimum of ten (10) of Respondent's clients seen in the previous month. Respondent is responsible for ensuring the quarterly reports are timely submitted by her practice monitor.
- b. Respondent shall complete ten (10) hours of continuing education related to professional boundaries. Respondent has already submitted proof of

completion of this requirement to the Board. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal.

- c. Respondent shall complete twenty (20) hours of additional training on treating clients who have the same or similar diagnoses to the client in this case. Respondent has already submitted proof of completion of ten (10) hours of training that can be used to satisfy this requirement. Training completed to fulfill this requirement is in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal. If practice monitoring identifies that additional training is needed for Respondent to competently treat clients, Respondent agrees to complete any additional training recommended by the practice monitor or the Board.
- d. Respondent shall appear before the Board upon request for the purpose of reviewing her performance during the probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- e. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- f. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- g. Respondent and Respondent's practice monitor shall each submit quarterly reports to the Board. Each year, the Quarter 1 (January-March) report is due no later than April 5th; the Quarter 2 (April-June) report is due no later than July 5th; the Quarter 3 (July-September) report is due no later than October 5th; and the Quarter 4 (October-December) report is due no later than January 5th.
- h. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Tony.Alden@idph.iowa.gov.

18. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

1-1-29-2020

Date

Angela Andeaway

ANGELA ANDEWAY
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on December 10, 2020.

/s/Donald Gilbert

Chairperson

Iowa Board of Behavioral Science